not exclusive or mandatory. Nothing in this subsection shall prevent the enforcement or challenge of any recorded lien or instrument as may otherwise be allowed by law. Nothing in this section alters or modifies any other requirements for the filing, enforcement, or challenge of any lien, deed, or other instrument required or allowed by law."

"§13A-9-22

(a) A person commits the crime of fraudulent sale or lease of residential real property if, with intent to defraud, he or she does either of the following:

(1) Lists ~~or~~, advertises, or causes to list or advertise residential real property for sale knowing that he or she or the purported seller has no legal title or authority to sell the property.

(2) Rents ~~or~~, leases, or causes to rent or lease residential real property to another person knowing that he or she or the purported lessor has no legal ownership or other authority to lease the property.

(b) Fraudulent sale or lease of residential real property is a Class ~~A misdemeanor~~ D felony.

"§36-20-73

(a) Notaries public may do all of the following:

(1) Administer oaths in all matters incident to the exercise of their office.

(2) Take the acknowledgment or proof of instruments of writing relating to commerce or navigation and certify the same and all other of their official acts under their seal of office.